

ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE
(JUDICIAL DEPARTMENT)

Writ Petition No.12495 of 2026.

Muhammad Sufyan. **Versus** Addl. District Judge, etc.

S. No. of order/ Proceeding	Date of order/ Proceeding	Order with signature of Judge, and that of Parties or counsel, where necessary
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10.06.2026. Rana Adnan Ahmad, Advocate for the petitioner.

Through this Constitutional Petition filed under Article 199 of the Constitution of the Islamic Republic of Pakistan, 1973 (*'The Constitution'*), the petitioner has called into question validity and legality of order dated 12.12.2025 whereby show-cause notice was issued to the petitioner for misconduct in frustrating legal proceedings, order dated 05.01.2026 passed by learned Special Judge (Rent) Faisalabad, whereby, owing to non-submission of reply to show-cause notice, matter of the petitioner was forwarded to RPO Faisalabad for departmental proceedings as well as to the Director General Anti Corruption, Faisalabad, for investigation; and judgment dated 22.01.2026 passed by Addl. District Judge, Faisalabad, whereby revision petition preferred by the petitioner against afore-said orders was dismissed.

2. Facts in brevity are that respondent No.6 instituted an ejectment petition under the Punjab Rented Premises Act, 2009, which was accepted ex-parte on 29.07.2025 and the

tenants were directed to vacate the demised premises. In execution of the said order, warrants of possession were issued by the learned Rent Tribunal. During the course of execution proceedings, the Bailiff submitted a report alleging that the petitioner, while serving as SHO Police Station Saddar, Faisalabad, along with the concerned DSP, interfered in the execution of warrants of possession and obstructed the process of delivery of possession. Taking notice of the said report, the learned Rent Tribunal issued show-cause notices to the petitioner and concerned DSP. Upon failure of the petitioner and the concerned DSP to furnish replies to the show-cause notices, the learned Rent Tribunal vide order dated 05.01.2026 observed that their conduct *prima facie* amounted to interference in judicial proceedings and misuse of authority. Consequently, the matter was referred to the Regional Police Officer, Faisalabad, for departmental proceedings and to the Director General Anti-Corruption Establishment, Faisalabad, for investigation in accordance with law. Feeling aggrieved, the petitioner preferred a revision petition, which was dismissed by the learned Revisional Court vide judgment dated 22.01.2026. Hence, the instant Constitutional Petition.

3. Heard. Record perused.

4. Perusal of the record reveals that during execution proceedings arising out of an ejectment order passed under the Punjab Rented Premises Act, 2009, warrants of

possession were issued by the learned Rent Tribunal. The report submitted by the Bailiff disclosed that while execution of warrants of possession was being carried out, the petitioner, who at the relevant time was serving as SHO Police Station Saddar, Faisalabad, along with the concerned DSP, interfered in the execution proceedings and called the parties to the police station, as a consequence whereof execution of the warrants could not be completed. Upon receipt of the said report, the learned Rent Tribunal considered the matter serious enough to warrant issuance of show-cause notices to the concerned police officials.

5. The record further reflects that vide order dated 12.12.2025, the learned Rent Tribunal issued show-cause notices to the petitioner as well as the concerned DSP requiring them to explain their conduct. Despite service of notices and availability of sufficient time, no reply was submitted before the learned Rent Tribunal. The impugned order dated 05.01.2026 specifically records that both officials failed to furnish their explanations despite opportunities afforded to them and, therefore, an adverse inference was drawn against them.

6. During the course of arguments before this Court on 26.02.2026, learned counsel for the petitioner, in response to a specific query regarding non-submission of reply to the show-cause notice, asserted that the petitioner had attempted to submit the reply but the learned Rent Tribunal refused to accept the same. In order to verify the said

assertion, learned counsel was directed to place on record an affidavit of the petitioner. Pursuant thereto, an affidavit has been filed. However, a careful reading of the affidavit reveals that the petitioner has nowhere stated that he approached the learned Rent Tribunal for submission of a reply and that the same was refused by the Court. On the contrary, the petitioner merely stated that he had requested the learned Rent Tribunal to treat his statement dated 19.12.2025 as a reply to the show-cause notice. There is a marked distinction between refusal by a Court to receive a reply and a request by a party that some earlier statement be treated as a reply. Thus, the affidavit itself does not support the contention advanced by learned counsel.

7. In these circumstances, the plea raised by the petitioner that he was prevented by the learned Rent Tribunal from filing his reply is devoid of substance and cannot be accepted. Had the petitioner genuinely intended to contest the allegations levelled against him, nothing prevented him from filing a comprehensive written reply within the time granted by the learned Rent Tribunal. The record rather demonstrates that despite issuance of show-cause notice and grant of adequate opportunity, the petitioner failed to avail the same.

8. It is also noteworthy that the learned Revisional Court, before dismissing the revision petition, not only examined the record but also called the petitioner, concerned DSP and the Bailiffs in person and heard them at

length. After such exercise, the learned Revisional Court concluded that *prima facie* interference had in fact been made in the execution proceedings relating to delivery of possession.

9. A plain reading of the order dated 05.01.2026 shows that the learned Rent Tribunal neither convicted the petitioner of any offence nor imposed any penalty upon him. The learned Rent Tribunal merely directed that the matter be forwarded to the competent authorities, namely the Regional Police Officer and the Director General Anti-Corruption Establishment, for departmental proceedings and investigation in accordance with law. The impugned directions are, therefore, recommendatory in nature and leave the matter to be independently examined by the competent forums having jurisdiction in the matter.

10. It is a settled principle of law that the Courts are not mere silent spectators to acts or omissions which tend to undermine the administration of justice or impede the implementation of lawful orders and judgments. Where, during judicial proceedings, material comes before the Court *prima facie* disclosing misconduct, negligence, abuse of authority, or deliberate obstruction in the execution of judicial directions by a public functionary, the Court is not rendered powerless. Rather, it is not only within the competence of the Court but also its duty to ensure that such matters are brought to the notice of the competent authority for appropriate action in accordance with law.

Any conduct which creates hurdles in the implementation of judicial orders or frustrates the due course of justice must be dealt with firmly so as to uphold the majesty of law, preserve public confidence in the judicial process, and ensure effective enforcement of judicial determinations.

11. It may, however, be clarified that a direction for referring the matter to the competent authority does not amount to a finding of guilt nor does it entail any civil consequence or punishment by itself. Such referral merely sets the legal process in motion, leaving it to the competent authority to independently scrutinize the matter in accordance with the applicable law, rules and regulations. The petitioner shall be at full liberty to raise all factual and legal pleas available to him and to produce any material in his defence before the said authority. Needless to observe that before taking any adverse action, the competent authority shall afford the petitioner a fair and meaningful opportunity of hearing, consider his defence objectively, and pass a speaking order strictly in accordance with law and the dictates of due process.

12. I have also independently examined the impugned orders and find that the learned Rent Tribunal as well as the learned Revisional Court have proceeded on the basis of material available before them. Learned counsel for the petitioner has failed to point out any jurisdictional defect, patent illegality, misreading or non-reading of evidence which may justify interference by this Court in exercise of

constitutional jurisdiction under Article 199 of the Constitution.

13. Constitutional jurisdiction is discretionary in nature and is not ordinarily invoked to interfere with interlocutory or recommendatory directions, particularly where no adverse final action has yet been taken against the aggrieved person and adequate remedies remain available before the competent authorities. The petitioner shall have full opportunity to defend himself before any departmental or investigative forum, if proceedings are initiated pursuant to the impugned orders.

14. For what has been discussed above, I find no illegality or infirmity in the impugned orders warranting interference by this Court. Consequently, this Constitutional Petition, being devoid of merit, is **dismissed in limine**.

(AHMAD NADEEM ARSHAD)
JUDGE

APPROVED FOR REPORTING.

JUDGE

*M. Arsalan**